

Maresh Prasad vs State Of U.P. And Another on 7 January, 2020

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 78

Case :- APPLICATION U/S 482 No. - 420 of 2020

Applicant :- Maresh Prasad

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Ram Sumer Chaudhary

Counsel for Opposite Party :- G.A.,Baleshwar Chaturvedi

Hon'ble Anil Kumar-IX,J.

Heard learned counsel for applicant, Shri Krishna Agarwal learned counsel for opposite party no. 2 and learned A.G.A. for State.

This application under Section 482, Cr.P.C. has been filed for quashing the charge sheet no. 01 dated 27.05.2019 in Special Case No. 180 of 2019 (State Vs. Maresh Prasad), in Case Crime No. 0192 of 2019, under Section 138(1)(b) Indian Electricity (Amendment) Act 2003, P.S.- Kotwali Nagar, District- Banda and cognizance and summoning order dated 12.07.2019.

It is contended by the learned counsel for the applicant the offence in question is compoundable and the applicant is ready to compound the same, provided sometime may be given to him.

After hearing the learned counsel for the parties and on perusal of the material available on record this Court is of the opinion that no useful purpose would be served in keeping this petition pending, which is finally disposed off, with liberty to the applicant to move an appropriate application under the relevant provisions of Electricity Act for compounding, before the concerned authority within 15 days from today. If such an application is moved by the applicant the same shall be considered and decided, most expeditiously, in accordance with law, after hearing the parties concerned, preferably

within a period of one months.

For a period of two months or till the disposal of the aforesaid application, no coercive action shall be taken against the applicant.

If the applicant does not move the application within the aforesaid period, the interim protection granted above shall automatically be vacated.

With the above observation, application under Section 482 Cr.P.C. is finally disposed of.

Order Date :- 7.1.2020 Sharad/-